

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

MEMORANDUM OPINION

Entered December 19, 2025.

Leora Benton claims that Blue Cedar Compliance, Inc. selected her for a March 2025 reduction in force because she opposed a sex-based assignment practice and filed an EEOC charge. Blue Cedar moves for summary judgment. It accepts for this motion that Benton's January 17 writing and February 3 charge were protected and that her termination was adverse. It maintains that an actual payroll target, calibrated coverage needs, and elimination of a management position—not retaliation—caused the selection.

The record presents close questions about how Blue Cedar documented several score changes and explained its choice over time. But Rule 56 requires evidence from which a reasonable factfinder could conclude that the employer's stated reason was not its real reason and that retaliation was a but-for cause. Considering the admitted record in Benton's favor, the Court concludes that the identified irregularities do not cross that threshold. The excluded Wynn declaration is not part of the merits record. Blue Cedar's motion will be granted for the reasons below.

Procedural background and admitted record

Benton filed her complaint on June 16, 2025, asserting one Title VII retaliation count and demanding a jury. Blue Cedar answered on July 7. The Court adopted the parties' proposed schedule on August 13, setting an October 10 discovery close, an October 17 supplementation deadline, and the present briefing dates. The parties produced the employee-relations file, notice-routing history, RIF workbook and version log, comparator scorecards, calibration minutes, performance records, explanation communications, and headcount ledger. They deposed Benton, Pike, Solis, Wynn, Ibarra, Voss, and Blue Cedar's corporate representative.

On December 1, the Court excluded only Wynn's newly asserted March 7 motive-related conversation under Rules 26 and 37. The ruling preserved her testimony about disclosed comparator subjects. The parties then submitted a joint chart distinguishing admitted facts, genuine disputes, and the excluded subject. Neither side requests additional discovery on the summary-judgment motion. Unless otherwise stated, the facts described here are undisputed or are presented in the manner most favorable to Benton, with reasonable inferences drawn for her and without treating a pleading allegation as proof.

Protected activity, notice, and decision authority

On January 17, Benton wrote to supervisor Naomi Voss and human-resources director Mira Solis. She described what she considered a sex-based pattern in assignment of high-visibility audit-lead credit, identified examples, requested a neutral review, and asked the company to pause reliance on the metric. Voss acknowledged and forwarded the writing. Solis opened employee-relations file ER-25-014 and reminded Voss that proposed changes affecting Benton required human-resources review. Benton supplied additional data and participated in a January 29 meeting.

Benton filed an EEOC charge on February 3. Blue Cedar received the notice and charge on February 10. Solis routed the packet to Draven Pike, the operations vice president who made the final manager-selection decision. The system recorded delivery that afternoon, an open event the next morning, and Pike's reply that he would preserve operations files. He attended a February 12 meeting titled "EEOC / staffing response" and asked when Benton had made her internal complaint. Pike testified that he knew before March 24 that Benton had raised an assignment issue and that an EEOC matter existed, while denying that he used either fact in the RIF.

The RIF target and competing scenarios

Finance director Sable Finch supplied a target of \$612,000 in annualized payroll and benefit savings. The workbook opened February 14 and covered twenty-three authorized positions: twenty-one filled positions and two vacancies. A February 24 revision added a vendor-coordination specialist to the positions under consideration. The final B-7 scenario ended five filled positions, including Benton's \$148,000 position, and eliminated two vacancies. It projected \$618,400 in annualized savings, exceeding the target by \$6,400.

The workbook also modeled alternatives that retained Benton and selected Wynn, Ibarra, or Keene. The position savings in those alternatives fell below \$612,000, but each reached the target when paired with a separately modeled \$14,600 archive-hosting expense consolidation. Pike rejected those combinations because he assessed greater continuity, summer-travel, or automation risk. He approved B-7 on March 21. Blue Cedar terminated Benton on March 24 and redistributed her work among the three retained managers and Voss. The parties agree that the savings objective was real. They dispute whether that objective and the asserted coverage judgments truthfully explain why Benton was the manager selected.

Calibration and comparator evidence

The February 14 import gave Benton 84 points, the highest of the four compared managers. Wynn had 76, Ibarra 73, and Keene 74. During calibration, Benton's continuity score fell from 22 to 14, availability from 12 to 6, and role uniqueness from 9 to 7, leaving a final score of 68. Voss entered the continuity and availability changes; Solis entered the uniqueness change; Pike approved the variances. Benton was not interviewed before those changes.

The retained managers received favorable changes or exceptions. Wynn's continuity increased for a transition ending in May, although Benton's transitions extended into June. Ibarra's availability increased based on volunteered future travel even though Benton completed more travel in 2024. Keene received maximum uniqueness credit for maintaining automation scripts without a formal transfer estimate. Final scores were Wynn 78, Ibarra 78, and Keene 75. The four managers shared a supervisor, a common scoring rubric, and overlapping audit duties, but they also held different portfolio responsibilities. The version log preserved the changes, and Solis flagged inconsistent measurement windows and unsupported distinctions before Pike approved them as business-continuity judgments.

Performance, redistribution, and explanations

Benton's annual reviews were positive. She timely closed forty-seven of fifty audits in 2024, completed twenty-eight travel days, held relevant credentials, and had no disciplinary record. The termination register marked her eligible for rehire. After termination, Wynn received Northline, Ibarra received Oriole, Keene received the remediation-review queue, and Voss chaired the monthly quality meeting. No new manager replaced Benton, but her underlying work continued and required additional management time during the transition.

The March 24 letter identified budget reduction and redistribution of redundant management work. Blue Cedar's April EEOC response also discussed salary, coverage, completion, and availability. During a July litigation-hold interview, Pike referred to salary, redundancy, completion, willingness to travel, and client confidence. He identified no contemporaneous client complaint about Benton and explained that “client confidence” meant continuity risk. Benton characterizes the later accounts as shifting reasons. Blue Cedar characterizes them as detail underlying the same budget-and-coverage decision. The contemporaneous March 20 email cited savings, redundant management work, and the retained managers' continuity, travel, and automation coverage, but did not label Benton a deficient performer.

Summary-judgment standard

Rule 56 permits judgment when the movant shows that no genuine dispute of material fact exists and that it is entitled to judgment as a matter of law. The Court views admissible evidence and reasonable inferences in the nonmovant's favor. It does not assess witness credibility, choose among competing supported accounts, or require the nonmovant to prove her case at the motion stage. A factual disagreement is material only if it could affect the result under governing law, and it is genuine only if the record would permit a reasonable factfinder to return a verdict for the nonmovant.

The Court considers the record as a whole. Temporal proximity, comparative treatment, procedural departures, and changes in explanation may reinforce one another even if no single category is decisive. At the same time, speculation and disagreement with business judgment do not create a triable question without evidence connecting the challenged decision to the prohibited reason. The Court applies those principles to the evidence the parties timely disclosed and properly placed in the record. The prior exclusion order removes only the new Wynn subject and does not diminish the timely scorecards, depositions, or business records.

Title VII retaliation framework

Title VII prohibits an employer from discriminating against an employee because she opposed an unlawful practice or participated in a Title VII proceeding. Benton proceeds through the burden-shifting method discussed in *Foster v. University of Maryland-Eastern Shore*, 787 F.3d 243 (4th Cir. 2015). She first must establish protected activity, materially adverse action, and the required causal connection. The employer then must articulate a legitimate, nonretaliatory reason. The ultimate burden remains with Benton to show that the stated reason was pretextual and that retaliation was a but-for cause of the challenged action.

The ultimate inquiry does not demand direct evidence or require Benton to disprove every business consideration. Evidence that the employer's account is unworthy of belief may support an inference that the prohibited reason was the real one. But the existence of some error, inconsistency, or unfairness does not itself establish retaliatory causation. The evidence must permit a reasonable finding that, absent the protected activity, Blue Cedar would not have selected Benton in this RIF. That is the issue on which the present motion turns.

Prima-facie showing and legitimate reason

For this motion, the first-stage showing is satisfied. Benton's January 17 writing expressly opposed a practice she described as sex based, and her February charge constituted protected participation. Termination was materially adverse. Pike received the charge packet, replied to the preservation request, attended the February 12 meeting, asked about the internal complaint, and admitted awareness of both an assignment concern and an EEOC matter before the decision. The Court therefore does not adopt Blue Cedar's narrower suggestion that only proof Pike read every allegation would establish knowledge. The six-week interval between receipt and termination also supplies temporal support at the initial stage.

Blue Cedar has articulated a legitimate reason: it sought a documented \$612,000 savings target and chose a scenario that exceeded the target while, in Pike's judgment, preserving continuity, travel capacity, and automation support. The company produced contemporaneous finance figures, workbook versions, meeting minutes, and a redistribution plan. Benton does not dispute the target or the elimination of other positions. The burden therefore returns to Benton to show a genuine dispute over pretext and ultimate but-for causation.

Calibration and comparator proof at the pretext stage

Benton has identified genuine irregularities. Her score dropped sixteen points without a new source metric, while retained managers received forward-looking credits that were not applied to her. The written protocol called for common measurement windows, concrete exception support, and consistent treatment. Solis's audit flagged variances, and Pike approved them without interviewing Benton. Those facts reasonably permit criticism of the calibration's rigor.

The Court nevertheless concludes that they do not permit a finding that retaliation was the real reason. The workbook preserved the imported and changed values rather than concealing them. The minutes identify continuity, travel, and transferability as the subjects discussed. Wynn, Ibarra, and Keene performed overlapping manager work, but each also carried a responsibility Pike elected to preserve. The record contains no admitted statement that Voss, Solis, or Pike altered a score because Benton complained. Knowledge by participants and imperfect adherence to an internal protocol, without evidence that the imperfection tracked protected activity, leave the asserted retaliatory connection inferential. A factfinder could reject Pike's business judgments, but that possibility alone does not show those judgments were a cover for retaliation.

Alternatives, timing, and the explanation sequence

The target-reaching alternatives likewise do not establish pretext. Each substituted a different manager and depended on an expense consolidation outside the payroll-position total. Pike testified that he rejected them because of different operational risks. The alternatives show arithmetic did not compel Benton's selection, but a discretionary choice among qualifying plans is not evidence of retaliation unless the record supports the prohibited reason for that choice.

Timing favors Benton at the prima-facie stage: the workbook opened four days after notice, and termination followed six weeks after receipt. Yet the calibration record describes a company-wide exercise involving seven positions and a finance target Benton accepts as genuine. The explanation sequence also permits competing characterizations. The termination letter's budget and redundancy language was general; later references to completion, availability, and continuity correspond to criteria present in the protocol and workbook before termination. "Client confidence" lacked a supporting complaint, but Pike connected that phrase to continuity rather than misconduct. On this record, the later detail does not reasonably establish that Blue Cedar abandoned one reason and invented another.

Combined record and disposition

The Court has considered the proof cumulatively rather than isolating each fact. Benton engaged in protected activity; Pike knew of it; the RIF began soon after notice; her high imported score fell; retained managers received exceptions; other combinations met the target; and later explanations were more detailed than the termination letter. Those facts create suspicion and would permit a factfinder to question whether Blue Cedar used its best or most consistent process. They do not, however, supply a reasonable basis to find that retaliation was the but-for reason for selecting Benton rather than one of the other managers.

The admitted contemporaneous record consistently identifies a genuine savings objective, redistribution of Benton's duties, and preservation of functions assigned to the retained managers. Pike's awareness does not itself prove retaliatory use, and no admitted motive statement bridges that gap. Because Benton's evidence does not permit the ultimate causal finding required by *Foster*, Blue Cedar is entitled to judgment as a matter of law on the sole claim. The motion for summary judgment is granted. A separate final judgment will be entered, and the Clerk will close the civil action.